

25NNCV09297 25NNCV09297

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-07-16

Motion: MOTION TO COMPEL ARBITRATION

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Case Number: 25NNCV09297 Hearing Date: July 16, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

PIERS BOSLER,

Plaintiff(s),

vs.

HYUNDAI
MOTOR AMERICA,

Defendant(s).

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CASE NO.: 25NNCV09297

[TENTATIVE]

ORDER RE: MOTION TO COMPEL ARBITRATION

Dept.

3

8:30

a.m.

July 16,

2026

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I.

INTRODUCTION

On December 29, 2025, plaintiff Piers Bosler ("Plaintiff") filed this action asserting violations of the Song-Beverly Consumer Warranty Act ("SBA"). Plaintiff alleges that on October 20, 2023, he leased a vehicle from defendant Hyundai Motor America ("Defendant"), a 2023 Hyundai Ioniq 6 ("Subject Vehicle"). Plaintiff alleges that the action arises out of Defendant's warranty and repair obligations and that the Subject Vehicle was delivered with serious defects and nonconformities.

On March 2, 2026, Defendant filed this

motion to compel arbitration of Plaintiff's claims.

Plaintiff filed an opposition brief on July 2, 2026.

Defendant filed a reply brief on July 9, 2026.

II.
REQUEST
FOR JUDICIAL NOTICE

Defendant requests the Court take judicial notice of Plaintiff's Complaint. The request is GRANTED pursuant to Evidence Code section 452(d).

III.
LEGAL
STANDARD

"The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.) The moving party can also meet its burden by setting forth the agreement's provisions in the motion. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].) For this step, "it is not necessary to follow the normal procedures of document authentication." (*Condee*, at p. 218; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755, review denied (Apr. 26, 2023).)

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Condee*, supra, 88

Cal.App.4th at p. 219.) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (Iyere, supra, 87 Cal.App.5th at p. 755.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (Ibid.)

IV.

DISCUSSION

Defendant contends that Plaintiff must be compelled to arbitrate his SBA claims because the Owner's Handbook & Warranty ("Warranty") and Bluelink Connected Services Agreement ("CSA") both contain arbitration provisions. (Ameripour Decl., Ex. 3; Rao Decl., Ex. 2.) The Court considers each arbitration provision below.

A.

Owner's
Handbook & Warranty Information

Section 4 of the Warranty is entitled "HYUNDAI WARRANTY INFORMATION" and includes the following on the first page:

BINDING ARBITRATION FOR CALIFORNIA
VEHICLES ONLY

PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN THE "ALTERNATIVE DISPUTE RESOLUTION" PROVISION IN SECTION 3 OF THIS HANDBOOK.

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising,

unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

We will pay all fees for any arbitration except for the initial filing fee of \$200. The arbitration will be held in the city or county of your residence. To learn more about arbitration, including the applicable rules and how to commence arbitration, please contact:

AAA at www.adr.org; 800-778-7879.

This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use or performance of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law. The arbitrator (and not a court) shall decide all issues of interpretation, scope, and application of this agreement.

In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others, or issue any award or remedy in arbitration against or on behalf of anyone who is not a named party to the arbitration, as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a plaintiff or class member in any class or representative action to the maximum extent permitted by law. You and we acknowledge and agree that, to the fullest extent permitted by law, we are each waiving the right to participate as a plaintiff or class member in any purported class action

lawsuit, class-wide arbitration, private attorney general action, or any other representative proceeding. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and must be stayed pending arbitration of the arbitrable claims and remedies. If a court or arbitrator decides that any part of this agreement cannot be enforced as to a particular request for public injunctive relief, then that request for public injunctive relief (and only that request for public injunctive relief) must be brought in court and must be stayed pending arbitration of the arbitrable remedies. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial.

Notwithstanding the above, either you or we may file a lawsuit in small claims court for any claims that otherwise require binding arbitration, if the small claims court has jurisdiction. In addition, either you or we may invoke any AAA Consumer Arbitration Rules that allow you or we to have a small claims court decide any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.

IF YOU PURCHASED OR LEASED YOUR VEHICLE
IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING
ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING
BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER
WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE
TERMS, PLEASE CONTACT US AT WITHIN THIRTY (30) DAYS OF YOUR
PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.

(Ameripour
Decl., Ex. 3; pp. 14-16.)

Defendant
argues that Plaintiff's claims under the SBA are subject to arbitration because
Plaintiff is bringing his claims under the Warranty and has alleged that
repairs have been performed under the Warranty, thereby accepting the benefits
of the Warranty. (Motion, p. 11.) Defendant argues that even if the Warranty is
not signed by Plaintiff, he cannot assert claims under the Warranty and obtain

its benefits while refusing to comply with the arbitration clause. (Motion, pp. 12-13.)

In

opposition, Plaintiff argues that as a threshold matter, Defendant fails to meet its moving burden to prove the existence of a valid arbitration agreement because the Owner's Handbook and Warranty booklet is not a bilateral contract and there is no evidence of assent. (Opp., p. 2-3.)

"Mutual assent usually is manifested by an offer communicated to the offeree and an acceptance communicated to the offeror." (Donovan v. Rrl Corp. (2001) 26 Cal.4th 261, 270-271.) Contracts, including arbitration agreements, are not formed where the writing does not look like a contract, and its inconspicuous terms were not called to the recipient's attention. (Metters v. Ralphs Grocery Co. (2008) 161 Cal.App.4th 696, 702-704 [substantial evidence showed that an agreement to arbitrate was on a form provided to employee for submitting a grievance, under circumstances that did not alert the employee that he would agree to arbitrate].) Here, there is no evidence whether Plaintiff should have seen the Owner's Handbook and Warranty booklet or noticed the arbitration provision.

Nevertheless,
as discussed below, the Court sees fit to compel Plaintiff to arbitrate his claims based on the Bluelink CSA.

B.

Bluelink
Connected Services Agreement

According to Defendant's client representative, Vijay Rao, Plaintiff enrolled in Bluelink services on or about October 20, 2023. (Rao Decl., ¶ 5.) The services refer to a connected car system that includes various functions and features. The relevant arbitration provision states:

Hyundai and you agree to arbitrate any
and all disputes and claims between us arising out of or relating to this
Agreement, Connected Services, Connected Services Systems, Service Plans, the
Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for,
whether you are a Visitor or Customer, via the sites or through mobile

application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. [...] The agreement to arbitrate otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising) [...]

(Rao Decl., Ex. 2, pp. 27-28.) Rao declares that in order for Plaintiff to have enrolled in Hyundai's Bluelink services, they would have had to click a box to acknowledge that they "read and agree[d] to the Blue Link Terms & Conditions" and then click the "Complete" button. (Id. at ¶ 6.) The phrase "Terms & Conditions" included a hyperlink to the CSA. (Id.) Rao declares that the box acknowledging the Terms & Conditions would not have been "prepopulated" with a check mark and that Plaintiff would have had to click that box to acknowledge assent to the CSA. (Id.) Rao further states that a customer cannot successfully activate Bluelink services unless they complete the step requiring them to click the box acknowledging that they agree to the Bluelink Terms and Conditions. (Id.)

In opposition, Plaintiff argues that his SBA claims do not fall within the scope of the CSA's arbitration provision because the CSA only applies to the "connected services" provided by Bluelink, i.e., remote start, vehicle diagnostics, stolen vehicle-tracking; not its statutory claims, which arise from defects with the Vehicle's braking system, proximity sensors, and blind spot detection. Plaintiff also argues that Defendant's enrollment in the procedures established by AB 1755 and SB 26 is inconsistent with its attempt to compel arbitration.

The Court disagrees. The CSA's arbitration provision is broad and governs any and all disputes and claims between Plaintiff and Defendant relating to the Vehicle, including claims based in contract, statute, and warranty. (Rao Decl., Ex. 2, p. 15.) Also, the Bluelink services could not have been activated unless Plaintiff acknowledged the Terms and Conditions, which included a hyperlink to the text of the CSA. Moreover, even if Defendant participates in the mandatory mediation and expedited discovery framework established by AB 1755, there is no evidence that the Legislature intended those statutes to waive the right to arbitrate.

V.

CONCLUSION

Based on the foregoing, the motion to compel arbitration is GRANTED. The Court stays the action and sets a status conference for _____ at 8:30 a.m. in Department 3 of the Alhambra Courthouse.

Dated
this 16th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.